

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: January 27, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On January 13, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Maritima SpA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pte. Ltd. (collectively, “Evergreen”), and Yang Marine Transport Corporation (“Yang Ming”), filed their first joint status report and proposed discovery schedule. On January 16, 2026, the parties were ordered to resubmit a proposed discovery schedule that completes discovery by July 1, 2026. On January 23, 2026, the parties submitted a second joint status report and proposed schedule that addresses the length of discovery raised in the January 16, 2026, order but the parties still propose briefing that exceeds the typical time allotted. Briefing due dates can be revisited after discovery is underway and the parties make progress in the schedule, but they are currently set for the typical period allowed after the close of discovery.

The parties footnote the proposed date for completion of depositions of fact witnesses, referencing this proceeding and two others that were severed from it stating, “should discovery in the three proceedings brought by Complainant proceed on the same discovery timeframe...each of Complainant’s former-employee deponents may need to be deposed on more than one day...” NBG is the Complainant in the three proceedings and requested that some aspects of the proceedings be coordinated and managed together. Depositions of NBG’s former employees and possibly the use of a common expert present opportunities to coordinate among the three proceedings. Even if the proceedings had not been severed, each Respondent would have been allowed to depose NBG’s witnesses regarding confidential information specific to their business without the others being present, so it is not clear that the separate proceedings

should impact the length of or the scheduling of those depositions. NBG as the Complainant in all three proceedings should propose dates as soon as practicable to depose its former employees so that each Respondent may depose those common witnesses with as limited an impact on the former employees' time as possible. The parties should review and apply the Initial Order ¶ 21 regarding asking questions that may require confidential responses at the end. Initial Order at 5. In the event of a deposition scheduling dispute, the parties should email me at Judges@fmc.gov so a video conference can be conducted to resolve the dispute.

The proposed discovery schedule is reasonable and is adopted; the proposed start of briefing is modified below. Accordingly, it is **ORDERED** that the parties follow this schedule, which includes briefing starting four weeks after the close of discovery:

February 2, 2026	Parties serve initial requests for production of documents, ESI, and interrogatories
February 20, 2026	Parties serve objections to initial requests for production of documents, ESI, and interrogatories
February 27, 2026	Parties submit any unresolved disputes regarding initial requests for production, interrogatories, and interrogatories
March 18, 2026	Parties file Joint Status Report 3 regarding status of discovery
April 1, 2026	Substantial completion of production of documents and ESI pursuant to initial requests
May 18, 2026	Complete depositions of fact witnesses
May 29, 2026	Disclosure of initial expert reports, if any
June 1, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
June 19, 2026	Disclosure of rebuttal expert reports, if any
July 1, 2026	Complete expert depositions
July 1, 2026	Close of discovery
July 29, 2026	Complainant's Brief, proposed findings of fact, appendix due
August 26, 2026	Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due
September 9, 2026	Complaint's Reply Brief, response to Respondent's proposed findings of fact due

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must also follow the instructions in the Initial Order, including the requirements for submitting confidential information. All filings “must be filed with the Secretary, Federal Maritime Commission.” 46 CFR 502.2(a). This filing requirement applies to both the confidential and public versions of filings. The Commission has waived paper filing requirements and permitted filings by email. Therefore, filings of confidential versions of documents, as well as the public version, should be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. Confidential filings should be clearly marked on the subject line, in the email, and on the document itself. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.

Consistent with the severing of Ocean Network Express Pte. Ltd., Orient Overseas Container Line Limited, and OOCL (Europe) Limited, from this proceeding on December 31, 2025, the Secretary is requested to remove their names as Respondents in the caption of this proceeding.



Linda S. Harris Crovella
Administrative Law Judge